

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents

RESPONDENTS' RESPONSE TO SEA'S MOTION TO COMPEL DISCOVERY

Respondents Orient Overseas Container Line, Limited and OOCL (Europe) Ltd. (collectively "Respondents" or "OOCL") hereby respond to the Motion to Compel filed by Complainant Samsung Electronics America, Inc. ("Complainant" or "SEA") on January 23, 2026 ("Motion").¹

I. INTRODUCTION - OOCL RESPONSE

Although this Response will turn to the substance of the Motion, we are compelled to briefly address SEA's posturing and strategy.

From the outset of SEA's claim, and throughout the discovery period in this case, OOCL has sought information from SEA that explains what it alleges that OOCL did, or failed to do, to cause the damages alleged by SEA. SEA has never provided a substantive or meaningful response

¹ OOCL's counter-summaries and arguments are set forth **in bold text** immediately following each of the attached Appendices annexed to the Motion, pursuant to ¶12 of the March 29, 2025 Initial Order entered in this proceeding, Dkt. No. 5. ("Initial Order").

to those questions, and that issue is the subject of OOCL's Motion to Compel. (Dkt. No. 104). To counter that perennial shortcoming, SEA has feigned outrage and brought the Motion – not for legitimate reasons – but in an attempt to tilt the playing field in its favor by avoiding the disclosure of information and documents needed to prove its case. By employing this strategy, SEA hopes to convince the Presiding Officer to shift the statutory burden of proof and persuasion to OOCL, a burden which SEA must bear, and to delay the inevitable reckoning on SEA's claims.

Following issuance of the Amended Scheduling Order on August 5, 2025 (Dkt. No. 68), OOCL promptly served its written discovery requests on SEA, timely completed service of its written discovery responses and completed its production of documents by the September 30, 2025, deadline set forth in the Amended Scheduling Order. SEA did not begin its production until September 29.

In December, dialogues began between counsel which occur in every complex litigation – deficiency letters were exchanged and conference calls were held regarding each party's respective productions. These communications have been documented in detail in the monthly JSRs, which the parties have filed. SEA continually asserts that the supplemental productions made by OOCL to resolve discovery disputes, in response to resolutions reached at conference calls among counsel, somehow render false OOCL's characterization of its September 26 production as complete. This is a naïve, and intentional, misrepresentation of how complex litigation proceeds, particularly when a party must search through databases comprised of multiple terabytes, to locate responsive documents. OOCL's production was complete on September 26, and SEA's undue focus on OOCL's statements to that effect are an attempt to detract from OOCL's on-going cooperation to supplement its productions, where appropriate. Again, this is a process followed in every complex litigation in this country.

While there were many deficiencies in SEA's responses, OOCL's focused on those deficiencies that relate to the three core sets of information/data that are critical to SEA proving its claim: (1) description of the shipments that comprise SEA's claim; (2) identification of the delays which gave rise to those claims; and (3) explanation/documentation of the reasons why SEA alleges OOCL was responsible for those delays. SEA finally produced a spreadsheet on November 13, 2025 which allegedly identified the shipments which comprise its claim, but it still refused to provide information, or identify documents, which support the latter two categories of discovery. Those two categories are the subject of OOCL's Motion to Compel (Dkt No. 104).

In contrast, SEA's deficiency notice engaged in a shotgun strategy, which involved the deployment of a twenty-page letter on December 19, 2025, that literally sought everything but the proverbial "kitchen sink." OOCL considered SEA's deficiency demands a continued effort to seek irrelevant documents, and that were also burdensome for OOCL to produce. Rather than involve the Presiding Officer in a discovery dispute, OOCL proceeded to resolve the issues raised by SEA by providing detailed supplemental discovery responses and documents. Those supplemental productions and written responses are detailed below in the Appendices which follow this brief.

However, certain misstatements by SEA in its Introduction must be addressed here.

SEA has inaccurately characterized OOCL's productions as a "smattering" of documents from its U.S. agent, OOCL (USA), Inc. The shipments which are the subject of SEA's claim involve demurrage and detention charges that were incurred in the United States, specifically at the ports of New York and Long Beach. The vast majority of OOCL's custodians, *i.e.*, persons with direct knowledge about facts relating to those shipments are, not surprisingly, employees of OOCL (USA), Inc. It is therefore obvious that the majority of responsive documents came from custodians who were employed by OOCL (USA), Inc.

The assertion that OOCL “has yet to produce documents from the Respondents” is accordingly misleading. Furthermore, it is false. As detailed below, OOCL identified three custodians from Hong Kong, one custodian from China, and two custodians from Korea who were deemed likely to have relevant knowledge, searched their respective mailboxes, and produced responsive documents in their custody. The statement in SEA’s Motion that “the production has not included a single document from China...” is false.

Finally, the assertion that no documents from OOCL (Europe) Ltd. were produced is meritless and, in reality, a red herring. All of the shipments which are the subject of SEA’s claim moved from Asia to the ports of Long Beach and New York. OOCL (Europe) Ltd. has no involvement in the Trans-Pacific Trade, a fact which is confirmed by FMC Agreement 201440 (Effective Date: Friday, January 31, 2025), which is on file with the Federal Maritime Commission. This Agreement provides at Article 4 (Geographic Scope) as follows: “This Agreement covers the trades between, on the one hand, ports in North Europe (including Belgium, France, Germany, United Kingdom, and Netherlands), and on the other hand, Mexico and U.S. ports in the Atlantic coast range (hereinafter, the ‘Trade’).” OOCL (Europe) Ltd. had no involvement with SEA. This fact can be confirmed by SEA when it begins depositions, if it so chooses.

Given the above, SEA’s true motives for filing the Motion are clearly reflected in its plea for an order shifting the burden under a patently inapplicable provision of the Shipping Act. Motion at 10. And its associated plea to have the Presiding Officer supervise OOCL’s discovery compliance is unwarranted in light of the fact that it is SEA who has repeatedly failed to meet its core discovery obligations and obfuscated those failures.

Ultimately, the only OOCL discovery issues in contention are those few responses where Respondents maintained their objections based on relevance to SEA’s claims and burden to OOCL,

limited to: (1) the relevance of financial records to a shipment-by-shipment analysis; and (2) the time period relevant to SEA's claims.

II. BACKGROUND – OOCL RESPONSE

Complainant's misrepresentation of key factual issues requires us to briefly respond to the "Background" described by SEA, which focuses on the use of Customer Nominated Truckers or "CNTs."

SEA falsely asserts that "OOCL had the option to use an alternate trucker to perform the inland delivery, at the shipper's cost. Nevertheless, OOCL failed to utilize other truckers..." Once the factual record is before the Presiding Officer, it will confirm that this statement is false.

The evidence will show that, preparatory to negotiation of the Service Contracts, the Requests for Quotation ("RFQs") issued by Samsung Electronics Corporation ("Samsung") required OOCL to use the CNTs designated by SEA: "Preferred Trucker & Delivery - Carriers are required to provide local delivery service with consignee's preferred trucker if any. (CNT = Customer Nominated Trucker)" Further, the factual record will confirm that the Service Contracts and tariffs they incorporate provide that: (1) the contract of carriage for inland door delivery of shipments was between SEA, as owner of the shipment, and its CNT; (2) OOCL's sole responsibility was the payment of freight charges to the CNT that had been built into the through freight rates for store door delivery service under the Service Contracts; and, (3) that OOCL acted solely as the agent of SEA in arranging for the inland transportation of shipments transported under the Service Contracts.

The record will also show that, while OOCL paid the CNTs for their services, they were directed by SEA as to when, where and how shipments were to be delivered. SEA's assertion that OOCL had "custody and control" of SEA's containers and was responsible for demurrage incurred when SEA or its CNTs failed to timely take delivery is, at best, misleading.

III. CERTIFICATION OF EFFORTS TO RESOLVE DISPUTES – OOCL RESPONSE

SEA's certification that it engaged in efforts to resolve the disputes are false with respect to all the subjects of its Motion, with the exception of two issues: (1) the relevance of financial records; and (2) the expanded time period for which SEA seeks documents. As Respondents will demonstrate below, the Motion involved multiple discovery requests as to which Complainant made no effort to confer until after the Presiding Officer ruled on OOCL's Motion to Strike and recommended that "(t)he parties are strongly encouraged to use the additional time granted in order to reach an agreement regarding some of the outstanding discovery issues..." (Dkt. No. 114 at page 2). And, as demonstrated by the partial resolution which followed the parties' January 30, 2026 meet and confer, the Motion was unnecessary with respect to all but two of the subjects referenced above and was accordingly not made in compliance with the meet & confer mandate.

The Parties have reported the status of discovery to the Presiding Officer on a monthly basis since June 26, 2025.²

The JSRs confirm that, in an attempt to avoid motions practice, while still maintaining its objections to the unreasonable burden of many of SEA's discovery requests, OOCL made *supplemental* productions of documents on a rolling basis, on December 2, 5, 11, 15, 22, and 30, 2025 and January 9, 2026. OOCL produced a total of 57,674 pages of documents. OOCL also served lengthy and detailed Supplemental Responses to Interrogatories on December 31, 2025.

² These joint status reports ("JSR") are hereinafter designated as follows: JSR1 (June 26, 2025); JSR2 (August 2, 2025); JSR3 (Sept. 2, 2025); JSR4 (Dec. 1, 2025); JSR5 (Jan. 5, 2026); JSR6 (February 2, 2026). The FMC was shut down between October 1-November 12, 2025 and no status reports were filed for October or November, 2025.

Unbeknownst to OOCL, SEA was apparently not satisfied with OOCL's additional productions and supplemental written discovery responses. But instead of conferring with OOCL, as it was required to do, it simply filed its Motion to compel discovery.

SEA's Motion should be denied on this basis alone, i.e., the failure to confer. Nevertheless, in the Argument below, we address the Motion's general untruths, while the Responses to specific SEA requests are addressed *seriatim* in the Appendices.

IV. LEGAL STANDARD – OOCL RESPONSE

The Commission's Rules permit discovery "regarding any nonprivileged matter that is relevant to any party's claim or defense." 46 C.F.R. § 502.141(e)(1). The Presiding Officer may limit the frequency or extent of discovery upon determination that the discovery sought is unreasonably cumulative or duplicative; can be obtained from some other source that is more convenient, less burdensome, or less expensive; or the burden or expense of the proposed discovery outweighs its likely benefit. 46 C.F.R. § 502.141(e)(2)(ii). Discovery also may be limited to protect a party from annoyance, embarrassment, oppression, or undue burden or expense. 46 C.F.R. § 502.141(j).

Notably, the Initial Order entered in this proceeding requires at ¶12 that "(a) motion to compel should only be filed after good faith efforts between the parties to resolve the dispute." Further, the Initial Order directed at ¶30 as follows: "The parties are expected to attempt to narrow the issues and to shorten the proceeding by stipulations. The parties may, by stipulation, agree upon any facts involved in the proceeding. 46 C.F. R. § 502.27."

SEA has not complied with these latter obligations.

V. ARGUMENT – OOCL RESPONSE

A. OOCL misrepresented the status of its document production. OOCL RESPONSE:

OOCL objected to many of SEA's requests for documents and determined that it had completed its document production on September 26, 2025. Notably, at that time, SEA had still not identified the shipments relevant to its claims, a shortcoming it did not attempt to correct until almost two months later on November 13, 2025. SEA contacted OOCL to assert discovery deficiencies the next day, by letter. Subsequent to SEA's letter insisting on additional productions over OOCL's objections, OOCL nevertheless began to supplement its document productions on December 2 and 5 in response to this letter and prepared an initial response to SEA's letter on December 11. The Parties conferred again on December 15 and reached understandings, based on the November 13 shipment list provided by SEA, on the scope of document production, namely, shipments moving through LBCT (Long Beach) and Maher (New York) between January 1, 2020 until December 31, 2022. *See*, JSR4 at 9.

In a twenty-page letter dated December 19, SEA asserted additional deficiencies in OOCL's discovery responses. On December 22 and 30, OOCL made additional document productions in an attempt to resolve those disputes, while maintaining its objections based on relevance and burden. Finally, on December 31, OOCL served additional lengthy and detailed verified Supplemental Responses to SEA's Interrogatories, followed by corresponding, supplemental document productions.

As discussed above, OOCL has not made any misrepresentation about the completeness of its document productions on September 26. OOCL's statements reflected its good faith belief that its productions were complete. Further, SEA's undue focus on the statement and unfair

characterization of same as “false” is irrelevant in light of OOCL’s ongoing cooperation in supplementing its production where appropriate.

**B. Respondents have not provided discovery from Respondents.
OOCL RESPONSE**

SEA’s allegations that documents from Orient Overseas Container Line, Ltd and OOCL (Europe) Ltd. have not been produced are not accurate and, in fact, are naïve and misleading. OOCL has agents located in 103 countries. Answer at 3. OOCL did not search for documents from every employee in these 103 countries, and no discovery rule requires OOCL to do so. Rather, OOCL collected documents from custodians identified early in the case who were likely to have responsive documents; those included custodians who were located overseas but mostly in the United States.

As noted above, three custodians from Orient Overseas Container Line, Ltd. located in Hong Kong, one custodian located in China and two custodians located in Korea were identified; their mailboxes were searched; and responsive documents were produced. Specifically, data was collected from Jason Jee, Karen Lam and Eriol Wong (Hong Kong), Jill Zhang (China) and Alex Bang and Jennifer Kim (Korea), their data was searched and responsive documents were produced.

As to OOCL (Europe), Ltd., OOCL previously explained to SEA that it has not searched data from this entity as none of its employees would have any responsive documents. As noted above, OOCL (Europe) Ltd. serves ports between Europe, Mexico and the U.S. East Coast. Since all of the shipments that are the subject of SEA’s claim moved from Asia to the United States, a search of OOCL (Europe) Ltd. data would not generate any responsive documents. SEA’s insistence that OOCL do so is unduly burdensome and would not result in the location of any responsive documents.

Further, no OOCL (Europe) Ltd. employee has been identified as a witness who is knowledgeable or who is likely to have discoverable information. This is apparent, of course, and is tacitly understood by SEA, as all of the shipments at issue in this matter originated in Asia and all the charges at issue in this matter were incurred at destinations in the United States. As clearly indicated in the documents produced in this proceeding, and as SEA is fully aware, OOCL sea waybills are signed by OOCL's local agents at origin. *See, e.g.*, OOCL_0043176.

Finally, all invoices for charges relevant to this proceeding were issued by OOCL (USA) Inc.

There is accordingly no defensible reason why SEA should now insist that data from servers owned by OOCL (Europe) Ltd. should be searched, when no relevant shipments moved from Europe to the United States and no personnel located at OOCL (Europe) Ltd. would have responsive documents.

C. Respondents have failed to produce significant numbers of responsive documents. OOCL RESPONSE

The category of documents described in this sub-point, *i.e.*, documents which SEA has in its files that it claims OOCL has not produced, has never been raised in a deficiency letter or discussed in a meet and confer, as required by the FMC Rules and the Initial Order. On that ground alone, this sub-point should be rejected.

OOCL's initial analysis of this part of SEA's Motion confirmed that the Bates numbers referenced in Appendix 1 did not correspond to the descriptions of the documents that were listed. This prevented OOCL's counsel from reviewing the documents referenced by SEA's Motion. Again, rather than embarrass SEA's counsel and summarily seek denial of this part of its application, OOCL took the high road and advised SEA's counsel of its error at the meet and confer

held on January 30, 2026. SEA's February 4, 2026 Letter,³ received yesterday afternoon, explained SEA's error:

“OOCL identified an issue with respect to the Bates numbering on SEA's Appendix 1. After review, SEA found that the documents in Appendix 1 were identified by internal identification numbers rather than Bates numbering.”

Copies of the documents which were the subject of this aspect of SEA's Motion, were provided to OOCL's counsel yesterday afternoon with its February 4, 2026 Letter. OOCL thus has only had one day to review these documents and analyze the merits of SEA's position. As explained below in more detail under Appendix 1, OOCL's preliminary analysis is that all but one of the documents identified by SEA were from the mailboxes of individuals who were determined not to be knowledgeable witnesses and who were therefore not designated as custodians whose mailboxes should be searched. The individuals are identified in OOCL's response to Appendix 1 and, as indicated therein, OOCL will look into whether their respective mailboxes are available and, if so, will undertake to search same for responsive materials.

Finally, the documents provided yesterday by SEA included one email on which an OOCL witness, Richard Nickerson, was copied. Mr. Nickerson was a custodian whose mailbox was provided at the inception of this matter, and following a search of same, responsive documents were produced to SEA. After receiving SEA's February 4, 2026 letter, OOCL searched Mr. Nickerson's data but did not find the email to which SEA's Motion refers. OOCL does not have the Nickerson document to which SEA's Motion refers, and all responsive documents in Mr. Nickerson's mailbox were produced.

³ A copy of SEA's February 4, 2026 letter was attached to JSR6.

The subject matter of this sub-point was another unnecessary aspect of SEA's Motion, and would have been resolved without the Presiding Officer's involvement had SEA brought this issue to OOCL's attention, as it was required to do by the FMC Rules and the Initial Order.

Given OOCL's willingness to search for the materials which SEA claims are "missing," this aspect of its Motion should be denied.

**D. OOCL's "possession, custody, or control" objections are proper.
OOCL RESPONSE**

SEA's allegations that OOCL objected to SEA's definition of OOCL is inaccurate. Motion at 7. OOCL objected to SEA's definition of "OOCL" as including agents NOT controlled by OOCL, such as SEA's customer-nominated truckers and marine terminals. This was discussed at the meet and confer, and counsel for Respondents were led to believe by counsel for Complainants that they agreed to limit the definition to agents directly controlled by Respondents. As explained above, Respondents collected documents from every custodian and office likely to have responsive information.

This aspect of SEA's Motion should be denied.

**E. OOCL's interrogatory responses have been evasive and incomplete.
OOCL RESPONSE**

SEA's Motion asserts that OOCL's responses to its Interrogatories Nos. 3, 4, 5, 6, 7, 8, 14, 15, 16, and 18 "remain incomplete." To the contrary, and as reproduced in SEA's Appendix II, OOCL has fully and completely responded to the Interrogatories to which it has not maintained an objection with respect to scope (time period) or relevance.

OOCL objected to SEA's definition of "Relevant Time Period" set forth in the Instructions of "January 1, 2020 to present" as burdensome, overly broad and not calculated to lead to the discovery of admissible evidence and objected to each Interrogatory that purports to require answers or the production of documents, data, or other information during the "Relevant Time

Period.” OOCL agreed to produce and has produced materials dating from January 1, 2020, until December 31, 2023, as a sufficient time period to capture all materials relevant to the proceeding.

OOCL also objected to certain interrogatories and requests for production of documents extending back to 2018. As set forth below (*see* OOCL Responses in Appendix I), OOCL has fully and completely responded to the Interrogatories to which it does not object based on relevance and burden, namely those requesting information irrelevant to SEA’s claims including descriptions at any rail, intermodal terminals and marine terminals other than LBCT and Maher, and for the time periods beyond 2020-2023.

Following the meet and confer held on January 30, 2026, disputes with respect to the following Interrogatories remain unresolved:

- Interrogatory no. 4 – Letter, ¶7.⁴
- Interrogatory no. 5 – not addressed in the Letter.
- Interrogatory no. 6 – SEA agrees that the scope does not include rail data or rail agreements. Letter, ¶¶1 and 3.
- Interrogatory no. 8 – not addressed in the Letter.
- Interrogatory no. 14 – Letter, ¶¶3 and 5.
- Interrogatory no. 15 – Letter, ¶3.
- Interrogatories 16 and 18 – not addressed in the Letter.

OOCL’s detailed responses as to why its Answers are responsive and adequate are set forth in detail in Appendix II.

⁴ “Letter” refers to the Mills Black letter dated February 4, 2026, appended to JSR6.

F. OOCL's production is incomplete. OOCL RESPONSE

SEA's allegations that OOCL has failed to produce documents responsive to RFPs 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13 and 14 have no merit. The meet and confer held with SEA's counsel did not resolve these disputes. OOCL's Responses to each are accordingly set forth below (*see* OOCL Responses in Appendix II).

VI. REQUESTED RELIEF – OOCL RESPONSE:

A. Order to Show Cause. OOCL RESPONSE

SEA has requested an Order to Show Cause pursuant to 46 C.F.R. § 502.150(b)(3). Motion at 9. The relief requested is that an order should be entered directing OOCL to explain why a default should not be entered due to OOCL's alleged failure to provide discovery.

At the outset, there is nothing in 46 C.F.R. § 502.150(b)(3) which permits a party to proceed by order to show cause, so that aspect of SEA's request should be summarily rejected.

As to the relief sought, *i.e.*, entry of a default, SEA has placed the cart far before the horse. The Rule is specific insofar as the ALJ must first determine what discovery, if any, OOCL failed to provide; then, if such a finding is made, issue an order giving OOCL an opportunity to produce that discovery; and then, if OOCL fails to comply, the ALJ may consider entering an order for the imposition of sanctions.

This aspect of SEA's application constitutes a sharp practice that is not supported, even by a cursory reading of the Rule. OOCL has already addressed and refuted SEA's allegations in the above responses: OOCL's production was complete on September 26, 2025; and, OOCL raised no "impediments to Respondent-level discovery" because there were none. OOCL made supplemental productions of documents in a good faith response to SEA's additional requests and as agreed in the parties' meet and confer.

This aspect of SEA's Motion should be denied.

B. Extension of the Discovery Schedule Due to Prejudice; Order of Undue Delay. OOCL RESPONSE

OOCL does not oppose an extension of the discovery schedule for several reasons, unrelated to the alleged deficiencies alleged by SEA in its Motion. SEA has recently advised that it intends to conduct depositions of 19 witnesses. This sudden demand, when coupled with the 8-9 depositions that OOCL intends to conduct, will not be possible to complete by March 27, 2026. Further, OOCL does not wish to proceed with depositions before receiving the core information and documents that are the subject of its focused Motion to Compel.

However, OOCL opposes SEA's request for a finding of "undue delay" pursuant to 46 U.S.C. §41302(d). The above demonstrates that OOCL has acted in good faith and, contrary to SEA's assertion, has engaged in extensive efforts to avoid burdening the Presiding Officer with unnecessary discovery motions on issues which are insincerely raised by SEA.

C. ALJ-Supervised Production Schedule. OOCL RESPONSE

SEA's suggestion that the ALJ supervise OOCL's production (Motion at 9) is unnecessary. OOCL has not been recalcitrant, but, as confirmed above, has routinely attempted to resolve discovery disputes without the Presiding Officer's involvement. Further, the Presiding Officer's requirement that the parties file a JSR on the first business day of each month to report on the status of discovery is sufficient for this proceeding. No further "supervision" is required.

D. Further Relief. OOCL RESPONSE

When the smoke of SEA's lengthy and convoluted Motion is cleared, its true goal is revealed in this sub-point. It does not have the evidence to prove its case, so it seeks an adverse finding in the hope of shifting the burden to OOCL to disprove a claim for which SEA has not established a *prima facie* case. SEA's requests for this relief should be summarily rejected.

VII. CONCLUSION. OOCL RESPONSE

Following a further conference with SEA's counsel on January 30 to discuss resolution of issues raised in its motion, Complainant agreed to withdraw and/or reduce its discovery deficiencies and confirmed that agreement in a letter dated February 4, 2026 which was attached to JSR6. As set forth above, and below in the more detailed response to each of SEA's allegations in its Appendices, Respondents have fully complied with all their discovery obligations or, alternatively, have expressed their willingness to resolve any outlying disputes, with the exception of requests seeking documents and information outside the relevant time frame of 2020 – 2022; and the financial data discussed above and in the Appendices.

As Respondents have complied with all discovery obligations and expressed a willingness to resolve any outlying issues, none of the relief proposed by the Motion should be granted.

Dated: February 5, 2026

Respectfully Submitted,

/s/ Rebecca A. Fenneman

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC

Rebecca A. Fenneman

Nicholas L. Webb

Kaya C. Massey

700 12th Street, NW Suite 700

Washington, DC 20005

RFenneman@JeffreyFenneman.com

KMassey@JeffreyFenneman.com

NWebb@JeffreyFenneman.com

COZEN O'CONNOR, P.C.

/s/ Christopher Raleigh

Wayne R. Rohde

Christopher Raleigh

Kathryn Sobotta

Cozen O'Connor, P.C.

1200 19th Street Northwest, Floor 3

Washington, DC 20036

Telephone: 202-463-2507

Facsimile: 202-640-5912

wrohde@cozen.com

craleigh@cozen.com

ksobotta@cozen.com

Counsel for Respondents, Orient Overseas Container Line Limited and OOCL (Europe) Limited

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

MILLS BLACK LLP

Counsel for Complainant

- a. Allen Black (hallenblack@millsblack.com)
- b. Peter F. Black (pblack@millsblack.com)
- c. Imran O. Shaukat (ishaukat@millsblack.com)
- d. Kathryn L. Fitzgerald (kfitzgerald@millsblack.com)

Dated: February 5, 2026

By: /s/ Christopher Raleigh